

MASTER SERVICE AGREEMENT FOR GEOTECHNICAL SERVICES

THIS MASTER SERVICE AGREEMENT FOR GEOTECHNICAL SERVICES (“**Agreement**”) is entered into May 16, 2017, with an effective date as of May 16, 2017, by and between **STERLING RANCH COMMUNITY AUTHORITY BOARD**, an authority and separate legal entity formed pursuant to §29-1-203, C.R.S. (the “**CAB**”), and **A.G. WASSENAAR, INC.**, a Colorado corporation (the “**Consultant**”) (each a “**Party**” and, collectively, the “**Parties**”).

RECITALS

A. The CAB was organized by the Sterling Ranch Colorado Metropolitan District Nos. 1-7 (the “**Districts**”) and pursuant to the laws of the State of Colorado in order to construct, operate and maintain certain public facilities and improvements in accordance with the Sterling Ranch Community Authority Board Establishment Agreement (the “**CABEA**”) and each of the service plans for the Districts.

B. The CAB and the Districts were formed to provide public improvements to that certain development known as Sterling Ranch in Douglas County, Colorado.

C. Pursuant to the CABEA, the CAB is permitted to enter into contracts and agreements affecting the affairs of the CAB.

D. The Consultant has experience in providing the services, generally described in **Exhibit A**, attached hereto and incorporated herein, the specific scope of which will be determined on a Work Order (“**Work Order**”) basis, as more particularly described herein (the “**Services**”), and is willing to provide such Services to the CAB for reasonable consideration.

E. The Parties desire to enter into this Agreement to establish the terms by which the Consultant will provide the Services to the CAB.

NOW, THEREFORE, in consideration of the mutual covenants and promises set forth herein, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto agree as follows:

I. CONSULTANT DUTIES AND AUTHORITY

1.1 Duties of Consultant. The Consultant shall:

(a) Perform the Services, safely and in accordance with the standard of care, skill, and diligence provided by a professional consultant in performance of work similar to the Services.

(b) Be properly qualified to perform the Services. The Consultant does hereby warrant that the quality of the Services shall be as specified in this Agreement,

shall conform in all respects to the requirements of this Agreement and shall be free of defects and deficiencies.

(c) Take all precautions necessary for safely and prudently conducting the Services required by this Agreement, including maintaining insurance as required under Section 4.2 hereof.

(d) Advise the CAB of the status of the Services required by this Agreement on a regular basis and work in coordination with the CAB's consultants to assure that the CAB has the most complete information available for the exercise of the CAB's powers and discretionary authority.

(e) Refrain from entering into any contract, oral or written, in the name of the CAB, and from incurring any debt, liability or obligation for or on behalf of the CAB. All obligations incurred by the Consultant shall be obligations of the Consultant and the Consultant shall hold the CAB harmless therefrom.

1.2 Limitations on Authority.

(a) The Consultant shall have no right or authority, expressed or implied, to take any action, expend any sum, incur any obligation, or otherwise obligate the CAB in any manner whatsoever, except to the extent specifically provided in this Agreement, a Work Order, or specifically authorized or ratified by the board of directors of the CAB as reflected in the minutes of the CAB board meetings. The Consultant shall at all times conform to the stated policies established and approved by the CAB.

(b) Independent Contractor Status. The Consultant is an independent contractor, as provided in Section 8-40-202(2)(b)(I)-(IV), C.R.S., as amended, and nothing herein contained shall constitute or designate the Consultant or any of its employees, agents, subcontractors or suppliers as employees of the CAB. The Services to be performed by the Consultant shall be at its sole cost, risk and expense, and no part of the cost thereof shall be charged to the CAB, except the payments to be made by the CAB to the Consultant for the Services performed as provided herein. The CAB shall not be responsible for the Consultant's means, methods, techniques, sequences or procedures of work or for safety precautions incident thereto. **The Consultant is not entitled to workers' compensation benefits and the Consultant is obligated to pay federal and state income taxes on moneys earned pursuant to this Agreement.**

1.3 Compliance with Applicable Law. So far as is consistent with the standard of care, Consultant shall provide the Services set forth herein in full compliance with all applicable laws, rules, and regulations of any federal, state, county, or municipal body or agency thereof having jurisdiction over the activities of the CAB.

1.4 No Right or Interest in CAB Assets. The Consultant shall have no right or interest in any of the CAB's assets, nor any claim or lien with respect thereto, arising out of this Agreement or the performance of the Services contemplated herein.

1.5 Certification of Compliance with Illegal Alien Statute. By its execution hereof, the Consultant confirms and ratifies all of the certifications, statements, representations and warranties set forth in **Exhibit D** attached hereto and made a part hereof by this reference.

1.6 Work Product. “**Work Product**” shall consist of all written materials maintained by the Consultant in connection with performance of this Agreement, including, but not limited to, all test results, logs, surveys, maps, plans, drawings, specifications, reports, PDF formatted electronic files and other documents, in whatever form. The Consultant shall maintain reproducible copies of any test results and logs which it obtains and shall make them available for the CAB’s use, and shall provide such copies to the CAB upon request at reasonable commercial printing rates. Consultant agrees all right, title and interest in the Work Product is and shall remain the property of the CAB. If requested by the CAB, Consultant shall execute and deliver such documents as shall be necessary in the CAB’s sole discretion, to assign, transfer and convey all rights in the Work Product to the CAB or its assignee. If Consultant fails to execute any documents required under this Section 1.6, then Consultant hereby irrevocably appoints the CAB its attorney-in-fact for the purpose of executing any required transfers of ownership or interests and any other documents necessary to effectuate this Section 1.6. Further, all Work Product, whether in paper or electronic form, reproductions thereof, or any information or instruments derived therefrom, shall be provided to the CAB immediately upon termination of this Agreement.

II. WORK ORDERS; COMPENSATION

2.1 Work Orders. The Services to be provided hereunder shall be performed for specific projects (each, a “**Project**”) pursuant to a separate Work Order describing each Project scope and component. The Projects and Work Orders shall be identified and determined in accordance with the process set forth on **Exhibit B**, attached hereto and incorporated herein. A form of Work Order is set forth on **Exhibit C**, attached hereto and incorporated herein.

2.2 Compensation. The Consultant shall be paid as set forth in each approved Work Order, unless otherwise approved in advance by the CAB through a written change order in form substantially as attached hereto as **Exhibit E** (“**Change Order**”).

2.3 Monthly Invoices and Payments. Unless the Work Order provides differently, the Consultant shall submit to the CAB a monthly invoice, in a form acceptable to the CAB for Services performed. Invoices shall be submitted and paid no more frequently than once a month.

2.4 Expenses. The Consultant is responsible for all expenses it incurs in performance of this Agreement and shall not be entitled to any reimbursement or compensation except as set forth in the applicable Work Order, unless otherwise approved in advance by the CAB in writing.

2.5 Subject to Annual Budget and Appropriation; CAB Debt. The CAB does not intend hereby to create a multiple-fiscal year direct or indirect debt or other financial obligation whatsoever. The performance of those obligations of the CAB hereunder requiring budgeting and appropriation of funds is subject to annual budgeting and appropriation. Nothing herein

constitutes or creates an indebtedness or debt of the CAB within the meaning of any Colorado constitutional provision or statutory limitation.

III. TERM AND TERMINATION

3.1 Term. The term of this Agreement shall begin on the date set forth above, and shall expire on satisfactory completion of the Services under all Work Orders. Extensions of this Agreement or any Work Order must be pursuant to a Change Order executed by both Parties.

3.2 Termination. The CAB may terminate this Agreement or any individual Work Order for convenience or for cause, in whole or in part, by written notice of termination given to the Consultant at least thirty (30) days prior to the effective date of such termination. The Consultant may terminate this Agreement or any individual Work Order for convenience or for cause, in whole or in part, by written notice of termination given to the CAB at least thirty (30) days prior to the effective date of such termination. Any termination notice provided pursuant to this Section 3.2 shall specify the extent of termination and the effective date of the same.

The CAB shall pay the Consultant for all Services satisfactorily performed in accordance with each Work Order through the termination date.

IV. INDEMNIFICATION AND INSURANCE

4.1 Indemnification. The Consultant hereby agrees to indemnify and hold the CAB and its affiliated entities or other persons or entities designated by the CAB, and their respective directors, trustees, officers, members, managers, agents and employees (collectively, the “**Indemnitees**”), harmless from any and all liability for damage arising out of death or bodily injury to persons or damage to property, in such amount that is represented by the degree or percentage of negligence or fault attributable to the Consultant and/or its agents, representatives, subcontractors, or suppliers.

4.2 Insurance Requirements. The Consultant shall procure, at its sole cost and expense, the insurance coverages set forth below, which insurance shall be placed with insurance companies rated at least “A:XIII” by A.M. Best Company. The Consultant shall give notice to the CAB at least thirty (30) days prior to the cancellation or nonrenewal of such policies. The Consultant shall give notice to the CAB within five (5) business days, or as soon as practicable, of any modification of any such policies. Consultant’s cost of maintaining the insurances required hereunder shall not be considered a reimbursable expense of the Consultant. The Consultant shall, upon request, promptly furnish the CAB with copies of policies obtained pursuant to this Section 4.2. Prior to commencing the Services, the Consultant shall furnish the CAB with certificates evidencing such insurance and provided further, however, with respect to the Workers’ Compensation Insurance required below, the Consultant must furnish to the CAB, prior to the commencement of any Services, duly executed and validated forms as prescribed by the state authority having jurisdiction evidencing that such insurance is in full force and effect. The CAB shall not pay any invoices until Consultant provides the certificates evidencing such insurance and Workers’ Compensation coverage.

(a) Liability Insurance Coverage.

(i) Workers' Compensation Insurance. A Workers' Compensation Insurance Policy in form and substance reasonably acceptable to the CAB and in an amount not less than the statutory benefits, including Employer's Liability Insurance with limits of liability of not less than (i) \$500,000 for bodily injury by accident, each accident; (ii) \$500,000 for bodily injury by disease, each employee; and (iii) \$500,000 aggregate liability for disease. The Workers' Compensation Insurance Policy, or an endorsement to such policy, must include a waiver of subrogation in favor of the CAB.

(ii) Commercial General Liability Insurance. A Commercial General Liability Insurance Policy written on an occurrence basis, in form and substance reasonably acceptable to the CAB, which policy shall include, without limitation, both the CAB and Flagstar Bank, its successors and/or assigns, Mail Stop E-203-1, 5151 Corporate Drive, Troy, Michigan 48098, as additional insureds, a waiver of subrogation endorsement in favor of the CAB, cross liability and severability of interest endorsements, endorsements providing that the coverage afforded by the insurance policy or policies is primary and non-contributing with any other insurance maintained by or available to the CAB, and appropriate language providing the following coverages: Premises and Operations Liability; Personal Injury Liability; Broad Form Property Damage Liability; Contractual Liability supporting the Consultant's indemnification agreements in favor of the CAB; Completed Operations and Products Liability; and Independent Contractor's Protective Liability. The Commercial General Liability Insurance Policy must be written with a combined single limit of liability of not less than \$1,000,000 for each occurrence of bodily injury and/or property damage and an annual aggregate of liability of not less than \$2,000,000 for bodily injury and/or property damage, and an annual aggregate of liability of not less than \$2,000,000 for Completed Operations and Products Liability.

(iii) Automobile Liability Insurance. An Automobile Liability Insurance Policy written on a per accident basis, in form and substance reasonably acceptable to the CAB. The Automobile Liability Insurance Policy must provide coverage for all owned, hired, rented and nonowned automobiles, and must include uninsured motorist coverages. The Automobile Liability Insurance Policy must be written with a combined single limit of liability of not less than \$1,000,000 for each accident for bodily injury and/or property damage.

(iv) Excess Liability Insurance. An Excess Liability Insurance Policy written in excess of the coverages provided by the insurance policies described in the preceding Subsections 4.2(a)(i) - (iii), in form and substance reasonably acceptable to the CAB, which policy will include the CAB and Flagstar Bank, FSB, its successors and/or assigns, Mail Stop E-203-1, 5151 Corporate Drive, Troy, Michigan 48098, as additional insured. The Excess Liability Insurance Policy must be written with a combined single limit of not less than \$1,000,000 for each occurrence of bodily injury/or property damage and annual aggregate.

(v) Professional Liability Insurance Coverage. The Consultant shall obtain and, continuously thereafter for eight (8) years from the date of substantial completion of the design, as long as commercially available, maintain in full force and effect a claims made policy covering errors, omissions and negligent acts in the performance of its Services hereunder, in an amount of \$1,000,000 per claim and annual aggregate. The Consultant shall be solely responsible for the payment of all deductibles. Consultant's deductibles or Consultant's self-insured retentions shall be approved by the CAB.

(b) Failure to Obtain and Obligation to Maintain Insurance. If the Consultant fails to furnish and maintain insurance as required by this Section 4.2, the CAB may purchase such insurance on behalf of the Consultant, and the Consultant shall furnish to the CAB any information needed to obtain such insurance. Except as otherwise expressly provided herein, all insurance policies required by the terms of this section shall be kept in full force and effect until the date of final payment to the Consultant for the Services specified in this Agreement. Notwithstanding anything to the contrary contained in this Agreement, the foregoing insurance requirements are in no way intended to, and will not in any manner, limit or qualify the liabilities and/or indemnities assumed by the Consultant under or pursuant to this Agreement.

(c) Effect of Approval or Acceptance of Insurance. CAB acceptance and/or approval of any or all of the insurances required hereunder does not and shall not be construed to relieve Consultant from any obligations, responsibilities or liabilities under this Agreement.

V. MISCELLANEOUS

5.1 Assignment. The Consultant shall not assign any of its rights or delegate any of its duties hereunder to any person or entity. Any purported assignment or delegation in violation of the provisions hereof shall be void and of no effect.

5.2 Modification; Amendment. This Agreement may be amended from time to time by agreement between the Parties hereto; provided, however, that no amendment, modification, or alteration of the terms or provisions hereof shall be binding upon the CAB or the Consultant unless the same is in writing and duly executed by the Parties.

5.3 Integration. This Agreement constitutes the entire agreement between the Parties with respect to the matters addressed herein. All prior discussions and negotiations regarding the subject matter hereof are merged herein.

5.4 Severability. If any covenant, term, condition, or provision under this Agreement shall, for any reason, be held to be invalid or unenforceable, the invalidity or unenforceability of such covenant, term, condition, or provision shall not affect any other provision contained herein, the intention being that such provisions are severable.

5.5 Governing Law and Jurisdiction. This Agreement shall be governed and construed under the laws of the State of Colorado. Venue for any legal action relating to this

Agreement shall be exclusive to the State District Court in and for the County of Douglas, Colorado.

5.6 Paragraph Headings. Paragraph headings are inserted for convenience of reference only.

5.7 Parties Interested Herein. Nothing expressed or implied in this Agreement is intended or shall be construed to confer upon, or to give to, any person other than the CAB and the Consultant any right, remedy, or claim under or by reason of this Agreement or any covenants, terms, conditions, or provisions thereof, and all the covenants, terms, conditions, and provisions in this Agreement by and on behalf of the CAB and the Consultant shall be for the sole and exclusive benefit of the CAB and the Consultant.

5.8 Notices. All notices, demands, requests or other communications to be sent by one Party to the other hereunder or required by law shall be in writing and shall be deemed to have been validly given or served by delivery of same in person to the addressee or by courier delivery via Federal Express or other nationally recognized overnight air courier service, by electronically-confirmed email transmission, or by depositing same in the United States mail, postage prepaid, addressed as follows:

To CAB:	Sterling Ranch Community Authority Board c/o CliftonLarsonAllen LLP 8390 E. Crescent Parkway, Suite 500 Greenwood Village, Colorado 80111 Phone: (303) 779-4525 Email: Chuck.Reid@CLAconnect.com Attn: Chuck Reid
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With a Copy To:	McGeady Becher P.C. 450 E. 17 th Avenue, Suite 400 Denver, Colorado 80203 Phone: (303) 592-4380 Email: mmcgeady@specialdistrictlaw.com Attn: MaryAnn McGeady
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To Consultant:	A.G. Wassenaar, Inc. 2180 South Ivanhoe Street, Suite 5 Denver, Colorado 80222 Phone: (303) 759-8100 Email: hastingst@agwco.com Attn: Thomas A. Hastings
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All notices, demands, requests or other communications shall be effective upon such personal delivery or one (1) business day after being deposited with FedEx or other nationally recognized overnight air courier service, upon electronic confirmation of email transmission, or three (3) business days after deposit in the United States mail. By giving the

other Party hereto at least ten (10) days' written notice thereof in accordance with the provisions hereof, each of the Parties shall have the right from time to time to change its address.

5.9 Default/Remedies. If either Party fails to perform any of its responsibilities, obligations or agreements to be performed in accordance with the provisions of this Agreement, including the provisions of any Work Order issued hereunder, and if such failure of performance continues for a period of thirty (30) days following written notice of default from the other Party (or such additional period of time as may reasonably be required to cure such default; provided that the curative action is commenced within such thirty (30) day period and is diligently and continuously pursued to completion), then the non-defaulting Party, at its option, may elect: (i) to treat this Agreement as remaining in full force and effect; or (ii) terminate this Agreement or a specific Work Order as of any specified date. The non-defaulting Party shall additionally be entitled to exercise all remedies available at law or in equity.

5.10 Instruments of Further Assurance. Each Party covenants it will do, execute, acknowledge, and deliver or cause to be done, executed, acknowledged, and delivered, such acts, instruments, and transfers as may reasonably be required for the performance of their obligations hereunder.

5.11 Compliance with Law. This Agreement is intended to be performed in accordance with and only to the extent permitted by all applicable laws, ordinances, rules, and regulations of the jurisdiction in which the Agreement is performed. The Consultant declares it has complied and will comply with all federal, state and local laws regarding business permits, certificates and licenses required to perform the Services.

5.12 Non-Waiver. No waiver of any of the provisions of this Agreement shall be deemed to constitute a waiver of any other provision of this Agreement, nor shall such waiver constitute a continuing waiver unless otherwise expressly provided herein, nor shall the waiver of any default hereunder be deemed to be a waiver of any subsequent default hereunder. Notwithstanding any provision to the contrary in this Agreement, no term or condition of this Agreement shall be construed or interpreted as a waiver, either expressed or implied, of any of the immunities, rights, benefits or protection provided to the CAB under the Colorado Governmental Immunity Act.

5.13 Inurement. This Agreement shall inure to and be binding on the heirs, executors, administrator, successors, and permitted assigns of the Parties hereto.

5.14 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall constitute an original and all of which shall constitute one and the same document.

5.15 Conflicts. If any term or provision(s) in any Exhibit attached as part of this Agreement conflicts with any term or provision(s) in the body of this Agreement, the term or provision(s) contained in the body of this Agreement shall control.

[SIGNATURE PAGES FOLLOW]

[SIGNATURE PAGE 1 TO SERVICE AGREEMENT]

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the day and year first above written.

Consultant:
A.G. WASSENAAR, INC., a Colorado
corporation

By: Thomas A. Hastings
Its: Vice President

STATE OF COLORADO)

COUNTY OF Denver) ss.

The foregoing instrument was acknowledged before me this 7th day of June, 2017, by Thomas A. Hastings, as Vice President of A.G. Wassenaar, Inc.

Witness my hand and official seal.

My commission expires: 1-16-21



Cathy E. Smith
Notary Public

[SIGNATURE PAGE 2 TO SERVICE AGREEMENT]

CAB:
STERLING RANCH COMMUNITY
AUTHORITY BOARD

By: 
President

STATE OF COLORADO

)

) ss.

COUNTY OF Arapahoe

)

The foregoing instrument was acknowledged before me this 20th day of June, 2017, by James L. Yates, as President of the Sterling Ranch Community Authority Board.

Witness my hand and official seal.

My commission expires: 7/28/19


Notary Public

SANDRA L. BRANDENBURGER
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20034024917
MY COMMISSION EXPIRES 7/28/2019

EXHIBIT A
General Description of Services

Geotechnical Services

1. Preparation of preliminary geotechnical studies, including soils testing, groundwater monitoring and other related soils and groundwater information and recommendations.
2. Hazardous and environmental testing, monitoring, reporting and related work.
3. Soils, borings, materials testing, reporting and all other related work.
4. All work typically performed by a professional soils engineer in the Denver metropolitan area.

EXHIBIT B

Work Order Process

- A. General. The Consultant shall perform the Services under this Agreement only upon a written Work Order (s) for a specific Project, executed by both the CAB and the Consultant, in form substantially as provided in Exhibit C, attached hereto and incorporated herein by this reference. Neither this Agreement nor each proposed Work Order will be construed as authorizing payment by the CAB for any portion of a specific Project; such authorization will be approved and evidenced by the CAB's approval and execution of each Work Order. For the purposes of this Agreement, the term "**Services**" shall mean all services to be performed by the Consultant for all Projects pursuant to all Work Orders issued pursuant to the procedures set forth in this Exhibit B.
- B. Work Order Request. The Consultant shall initiate a proposed Work Order and submit it to the CAB for approval for each of the Project components. A Work Order request shall: (i) describe the Project for which the Services are to be performed pursuant to such Work Order; (ii) set forth any provisions that differ from those set forth in the Agreement; (iii) set forth the applicable scope of Services for the Work Order and anticipated budget therefor, and will include, except as otherwise agreed upon, a do not exceed amount; and (iv) set forth milestones for key elements of such work and establish the deliverables to be produced by the Consultant. Once approved by the CAB, each Work Order shall be performed for the compensation as set forth in the approved Work Order. Any amounts in excess of the do not exceed amount specified in the approved Work Order shall only be authorized by the CAB's approval of a Change Order in the form attached hereto as Exhibit E. The CAB may, in its own discretion, complete or cause to be performed independent studies, analyses or evaluations of any work specified therein.
- C. Negotiation Regarding Work Order. The CAB will review each proposed Work Order submitted by the Consultant and shall have the right to approve, reject or negotiate any or all elements thereof. If the CAB and the Consultant cannot agree on a Work Order, the CAB may reject the Work Order in whole or in part, and perform the Services for that Project itself or engage others to perform the Services for that Project.
- D. Issuance of Work Order and Compensation. The CAB's approval of a proposed Work Order or, after negotiation, a revised Work Order, will be evidenced by the CAB's execution and approval of the same. The Consultant shall not commence work on any portion of any Project prior to the receipt of a fully executed Work Order for such work. The Consultant agrees that it shall not be compensated for any amounts in excess of what is approved in a Work Order unless set forth in an executed Change Order in form substantially as shown on Exhibit E attached hereto and incorporated herein by this reference or incorporated into a subsequent approved Change Order for the Project.
- E. Term of Work Order. Each Work Order shall remain in effect until the earlier to occur of: (1) completion of the Project; (2) termination of the Work Order; or (3) termination of the Agreement.

EXHIBIT C
Form of Work Order

**WORK ORDER
MASTER SERVICE AGREEMENT FOR
GEOTECHNICAL SERVICES**

Work Order No: _____	Date of CAB Approval: _____																
This Work Order is executed pursuant to the Master Service Agreement for Geotechnical Services entered into as of May 16, 2017, with an effective date of May 16, 2017, between the Sterling Ranch Community Authority Board (the “CAB”) and A.G. Wassenaar, Inc. (the “Consultant”) (the “Agreement”). This document incorporates the terms and conditions of the Agreement as noted, implemented, amended and supplemented below.																	
Description of Project and Project Components: _____																	
Anticipated Work Order Budget: \$ _____ The anticipated Work Order budget represents an opinion of probable costs for purposes of establishing an approximate value of the overall Project, which will be refined and established as described in the elected form of contract. Approval of this Work Order authorizes payment of the anticipated work budget by the CAB.																	
Schedule for the Work: <table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 20%; padding: 5px;"><u>Date</u></th> <th style="width: 40%; padding: 5px;"><u>Scope</u></th> <th style="width: 20%; padding: 5px;"><u>Est. Amount</u></th> <th style="width: 20%; padding: 5px;"><u>Est. Completion Date</u></th> </tr> </thead> <tbody> <tr> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> <td style="padding: 5px;">\$ _____</td> <td style="padding: 5px;"></td> </tr> <tr> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> </tr> <tr> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> <td style="padding: 5px;"></td> </tr> </tbody> </table>		<u>Date</u>	<u>Scope</u>	<u>Est. Amount</u>	<u>Est. Completion Date</u>			\$ _____									
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		\$ _____															
Other Project Terms/Notes: _____																	
Modifications to Agreement: _____																	
Approved By: _____	Approved: By: _____																
Sterling Ranch Community Authority Board	A.G. Wassenaar, Inc.																

EXHIBIT D
Certification of Consultant

1. Pursuant to the requirements of Section 8-17.5-102(1), C.R.S., the Consultant hereby certifies to the CAB that the Consultant does not knowingly employ or contract with an illegal alien who will perform work under the Agreement and that it will participate in the E-Verify Program or Department Program (as defined in Sections 8-17.5-101(3.3) and (3.7), C.R.S.) in order to confirm the employment eligibility of all employees of the Consultant who are newly hired to perform work under the Agreement.

2. In accordance with Section 8-17.5-102(2)(a), C.R.S., the Consultant shall not:

(a) Knowingly employ or contract with an illegal alien to perform work under the Agreement; or

(b) Enter into a contract with a subcontractor that fails to certify to the Consultant that the subcontractor shall not knowingly employ or contract with an illegal alien to perform work under the Agreement.

3. The Consultant represents and warrants it has confirmed the employment eligibility of all employees who are newly hired for employment to perform work under the Agreement through participation in either the E-Verify Program or the Department Program.

4. The Consultant is prohibited from using either the E-Verify Program or the Department Program procedures to undertake pre-employment screening of job applicants while the Agreement is in effect.

5. If the Consultant obtains actual knowledge that a subcontractor performing work under the Agreement knowingly employs or contracts with an illegal alien, the Consultant shall:

(a) Notify the subcontractor and the CAB within three (3) days that the Consultant has actual knowledge that the subcontractor is employing or contracting with an illegal alien; and

(b) Terminate the subcontract with the subcontractor if within three (3) days of receiving the notice the subcontractor does not stop employing or contracting with the illegal alien; except that the Consultant shall not terminate the contract with the subcontractor if during such three days the subcontractor provides information to establish that the subcontractor has not knowingly employed or contracted with an illegal alien.

6. The Consultant shall comply with any reasonable request by the Colorado Department of Labor and Employment ("**Department**") made in the course of an investigation that the Department is undertaking, pursuant to the law.

7. If the Consultant violates any provision of Section 8-17.5-102(1), C.R.S., the CAB may terminate the Agreement immediately and the Consultant shall be liable to the CAB for actual and consequential damages of the CAB resulting from such termination, and the CAB shall report such violation by the Consultant to the Colorado Secretary of State, as required by law.

EXHIBIT E
Form of Change Order

**CHANGE ORDER FOR
MASTER SERVICE AGREEMENT FOR
GEOTECHNICAL SERVICES**

Change Order No: _____	Date Issued: _____
Work Order No: _____	Date of Work Order: _____

Change in Scope of Services: 	
Change in Work Order Anticipated Budget or Compensation:	Change in Term of Work Order:
Original Compensation: \$ _____	Original Term: Expires _____, 20__
Increase of this Change Order: \$ _____	New Term: Expires _____, 20__
Compensation with all Approved Change Orders: \$ _____	Term with all Approved Change Orders:

Approved:	Approved:
By: _____	By: _____
Sterling Ranch Community Authority Board	A.G. Wassenaar, Inc.



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
07/17/2017

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Marsh USA Inc. One Towne Square, Suite 1100 Southfield, MI 48076 Attn: detroitgroupcaptive.certrequest@marsh.com		CONTACT NAME: PHONE (A/C, No, Ext): FAX (A/C, No): E-MAIL ADDRESS:	
R00209-GAWUC-17-18		INSURER(S) AFFORDING COVERAGE	
INSURED A.G. Wassenaar, Inc 2180 S. Ivanhoe, Suite #5 Denver, CO 80222		NAIC #	
		INSURER A : Zurich American Insurance Company 16535	
		INSURER B : Travelers Property Casualty Co. Of America 25674	
		INSURER C : American Zurich Insurance Company 40142	
		INSURER D : N/A N/A	
		INSURER E :	
		INSURER F :	

COVERAGES **CERTIFICATE NUMBER:** CHI-008541278-01 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PROJECT ☐ LOC OTHER:			GLO3486486-15	04/01/2017	04/01/2018	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 500,000 MED EXP (Any one person) \$ 10,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000 \$
A	☒ AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☒ HIRED AUTOS ONLY ☒ NON-OWNED AUTOS ONLY			BAP3486487-15	04/01/2017	04/01/2018	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
B	☒ UMBRELLA LIAB ☒ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE ☐ DED ☒ RETENTION \$ 10,000			ZUP-21N89766-17-NF	04/01/2017	04/01/2018	EACH OCCURRENCE \$ 1,000,000 AGGREGATE \$ 1,000,000 \$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N ☒ N	N/A	WC3486485-15 (Does not apply to Monopolistic States [ND, OH, WA, and WY], Puerto Rico, or the Virgin Islands)	04/01/2017	04/01/2018	☒ PER STATUTE ☐ OTHER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

The certificate holder, its successors and/or assigns, are included as additional insured where required by written contract with respect to General Liability and Auto Liability. This insurance is primary and non-contributory over any existing insurance and limited to liability arising out of the operations of the named insured subject to policy terms and conditions. Waiver of subrogation is applicable where required by written contract and subject to policy terms and conditions.

CERTIFICATE HOLDER

CANCELLATION

Sterling Ranch Community Authority Board and Flagstar Bank Mail Stop E-203-1, 5151 Corporate Drive Troy, MI 48098	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE of Marsh USA Inc. John C Hurley
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CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
07/17/2017

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Marsh USA Inc.
One Towne Square, Suite 1100
Southfield, MI 48076
Attn: detroitgroupcaptive.certrequest@marsh.com

CONTACT NAME:
PHONE (A/C, No, Ext):
E-MAIL:
ADDRESS:
FAX (A/C, No):

R00209-GAWUC-17-18

INSURED
A.G. Wassenaar, Inc
2180 S. Ivanhoe, Suite #5
Denver, CO 80222

INSURER(S) AFFORDING COVERAGE

NAIC #

INSURER A : Zurich American Insurance Company

16535

INSURER B : Travelers Property Casualty Co. Of America

25674

INSURER C : American Zurich Insurance Company

40142

INSURER D : N/A

N/A

INSURER E :

INSURER F :

COVERAGES

CERTIFICATE NUMBER:

CHI-008541278-01

REVISION NUMBER:

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Board and Flagstar Bank
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AUTHORIZED REPRESENTATIVE
of Marsh USA Inc.

John C Hurley